THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON

AILA CURTIS, *et al.*,

Plaintiffs,

v.

PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, & GOV. JAY INSLEE,

Defendants.

Case No. 3:23-CV-05741-RJB

PEACEHEALTH DEFENDANTS' MOTION TO DISMISS PLAINTIFFS' AMENDED COMPLAINT

NOTE ON MOTION CALENDAR:
January 12, 2024

STOEL RIVES LLP
ATTORNEYS
600 University Street, Suite 3600, Seattle, WA 98101
Telephone 206.624.0900

TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES iii

I. INTRODUCTION 1

II. FACTUAL BACKGROUND 2

III. LEGAL STANDARD 3

IV. ARGUMENT 3

A. Plaintiffs Fail to State a Claim Under 42 U.S.C. § 1983. 3

1. There Is No Right to Employment at a Healthcare Facility While Refusing Vaccination 4

a. 21 U.S.C. § 360bbb-3 Is Inapplicable and Confers No Actionable Right 6

b. 45 C.F.R. § 46 Is Inapplicable and Confers No Actionable Right. 8

c. The Belmont Report Is Inapplicable and Confers No Actionable Right. 9

d. EUA Scope of Authorization Letters Are Inapplicable and Confer No Actionable Right. 9

e. The International Covenant on Civil and Political Rights Is Inapplicable and Confers No Actionable Right. 10

f. 10 U.S.C. § 980 Is Inapplicable and Confers No Actionable Right. 10

2. The PeaceHealth Defendants Are Not State Actors. 11

a. Plaintiffs Fail to Plead That PeaceHealth's Vaccine Requirement Is a "Public Function." 12

b. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through "State Compulsion." 14

c. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through the "Joint Action" Test. 15

d. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through the "Close Nexus" Test 16

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TABLE OF CONTENTS
(continued)

Page

3. Plaintiffs' Section 1983 Claims Warrant Dismissal on Additional Bases. 17

a. "Subjected to Investigational Drug Use." 17

b. The Unconstitutional Conditions Doctrine 18

c. Equal Protection Clause. 19

d. Due Process Clause. 20

e. "Spending Clause Doctrine" Is Nonexistent and Plaintiffs' Cited Laws Only Restrain the Federal Government. 21

B. Plaintiffs' Breach of Contract Claim Fails 22

1. Plaintiffs Are Not Third-Party Beneficiaries of the Provider Agreement. 23

2. The "Right" Plaintiffs Claim as Alleged Third-Party Beneficiaries Does Not Exist. 23

C. Plaintiffs' "Washington State Common Law Employment Torts" Are Not Cognizable. 24

D. Plaintiffs' Outrage Claim Fails Because Enforcing an Employee Vaccination Requirement Is Not "Extreme and Outrageous Conduct." 24

E. Plaintiffs' "Invasion of Privacy and Defamation of Character" Claims Fail 26

1. Plaintiffs' Claim of "Invasion of Privacy" Fails Because a Healthcare Provider's COVID-19 Vaccination Status Is Not Offensive and of Legitimate Concern. 26

2. Plaintiffs' Defamation Claim Fails Because Plaintiffs Fail to Allege That PeaceHealth Made Any False Statement 27

F. Plaintiffs' "Implied Right of Action" Claim Should Be Dismissed Because There Is No Implied Right of Action Under 21 U.S.C 28

G. Plaintiffs' Claims Should Be Dismissed with Prejudice Because Amendment Would Be Futile 28

V. CONCLUSION 29

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TABLE OF AUTHORITIES

Page

Cases

Algarin v. NYC Health + Hosps. Corp.,
No. 1:22-cv-8340 (JLR), 2023 WL 4157164 (S.D.N.Y. June 23, 2023).....29

Am. Mfrs. Mut. Ins. Co. v. Sullivan,
526 U.S. 40 (1999).....3, 11

Anderson v. United Airlines, Inc.,
577 F. Supp. 3d 1324 (M.D. Fla. 2021).....13

Antunes v. Rector & Visitors of Univ. of Va.,
627 F. Supp. 3d 553 (W.D. Va. 2022).....18, 24

Ashcroft v. Iqbal,
556 U.S. 662 (2009).....3

Bailey-Medwell v. Hartford Life & Accident Ins. Co.,
No. C17-1697-MJP, 2018 WL 5264335 (W.D. Wash. Oct. 23, 2018).....22

Barren v. Harrington,
152 F.3d 1193 (9th Cir. 1998).....19

Bateson v. Geisse,
857 F.2d 1300 (9th Cir. 1988).....20

Belgau v. Inslee,
975 F.3d 940 (9th Cir. 2020).....17

Bell Atl. Corp. v. Twombly,
550 U.S. 544 (2007).....3, 16

Biden v. Missouri,
595 U.S. 87 (2022).....5, 26

Borrello v. Respironics Cal., LLC,
No. 23-CV-580-GPC-WVG, 2023 WL 5986135 (S.D. Cal. Sept. 14, 2023).....27

Brentwood Acad. v. Tenn. Secondary Sch. Athletic Ass'n,
531 U.S. 288 (2001).....17

Bridges v. Houston Methodist Hosp.,
543 F. Supp. 3d 525 (S.D. Tex. 2021).....8, 10

Brown v. NW Permanente, P.C.,
No. 3:22-cv-986-SI, 2023 WL 6147178 (D. Or. Sept. 20, 2023).....27

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TABLE OF CONTENTS
(continued)

Page

Cala v. Moorings Park Cmty. Health, Inc.,
No. 2:22-CV-635-JES-NPM, 2022 WL 17405581 (M.D. Fla. Dec. 2, 2022), *reconsideration granted on other grounds*, 2023 WL 1102646 (M.D. Fla. Jan. 30, 2023) 25

Caviness v. Horizon Cmty. Learning Ctr., Inc.,
590 F.3d 806 (9th Cir. 2010) 11

Cesare v. PACT MSO, LLC,
No. 3:23-CV-253 (SVN), 2023 WL 5893429 (D. Conn. Sept. 11, 2023) 25

Ciraci v. J.M. Smucker Co.,
62 F.4th 278 (6th Cir. 2023) 12, 13, 17

Demos v. Brusic,
No. C22-954 RAJ-TLF, 2022 WL 16927720 (W.D. Wash. Sept. 14, 2022) 3, 28, 29

Deutsche Bank Nat'l Tr. Co. v. Slotke,
192 Wn. App. 166, 367 P.3d 600 (2016) 23

Emeson v. Dep't of Corr.,
194 Wn. App. 617, 376 P.3d 430 (2016) 27

Evans v. Newton,
382 U.S. 296 (1966) 12

Fallon v. Mercy Catholic Med. Ctr. of Se. Pa.,
200 F. Supp. 3d 553 (E.D. Pa. 2016) 24

Finkbeiner v. Geisinger Clinic,
623 F. Supp. 3d 458 (M.D. Pa. 2022) 25

Flagg Brothers, Inc. v. Brooks,
436 U.S. 149 (1978) 13

Franklin v. Fox,
312 F.3d 423 (9th Cir. 2002) 11

George v. Grossmont Cuyamaca Cmty. Coll. Dist. Bd. of Governors,
No. 22-cv-0424-BAS-DDL, 2022 WL 16722357 (S.D. Cal. Nov. 4, 2022) 19

Gonzaga Univ. v. Doe,
536 U.S. 273 (2002) 7

Halgren v. City of Naperville,
577 F. Supp. 3d 700 (N.D. Ill. 2021) 19

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TABLE OF CONTENTS
(continued)

Page

Heggem v. Holmes,
No. C10-1997-RSM-MAT, 2011 WL 7758243 (W.D. Wash. Dec. 9, 2011, *report and recommendation adopted*, 2012 WL 1378786 (W.D. Wash. Apr. 20, 2012) 14

Hotel & Motel Ass'n of Oakland v. City of Oakland,
344 F.3d 959 (9th Cir. 2003) 20

Jackson v. Metropolitan Edison Co.,
419 U.S. 345 (1974) 13

Jacobson v. Massachusetts,
197 U.S. 11 (1905) 4, 5, 6

Jensen v. Biden,
No. 4:21-CV-5119-TOR, 2022 WL 18860405 (E.D. Wash. Jan. 7, 2022) 5

Johnson v. Brown,
567 F. Supp 3d 1230 (D. Or. 2012) 7

Johnson v. Tyson Foods, Inc.,
607 F. Supp. 3d 790 (W.D. Tenn. 2022) 7, 12, 28

Johnston v. M/V Dieu Si Bon,
No. C96-1050R, 1996 WL 866112 (W.D. Wash. Oct. 10, 1996) 25

Kheriaty v. Regents of Univ. of Cal.,
No. 22-55001, 2022 WL 17175070 (9th Cir. Nov. 23, 2022) 5, 20

Kirtley v. Rainey,
326 F.3d 1088 (9th Cir. 2003) 12, 14, 17

Klamath Water Users Protective Ass'n v. Patterson,
204 F.3d 1206 (9th Cir. 1999) 22, 23

Koontz v. St. Johns River Water Mgm't Dist.,
570 U.S. 595 (2013) 18

Kriley v. Nw. Mem'l Healthcare,
No. 22-1606, 2023 WL 371643 (7th Cir. Jan. 24, 2023) 9

Lee v. Katz,
276 F.3d 550 (9th Cir. 2002) 12

Legaretta v. Macias,
603 F. Supp. 3d 1050 (D.N.M. 2022) 6, 7, 18

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TABLE OF CONTENTS
(continued)

Page

Lugar v. Edmondson Oil Co.,
457 U.S. 922 (1982) 11, 12

McArthur v. Brabrand,
610 F. Supp. 3d 822 (E.D. Va. 2022) 19

Mendez v. City of Boise,
845 F. App'x 636 (9th Cir. 2021) 20

Naffe v. Frey,
789 F.3d 1030 (9th Cir. 2015) 4

Navy Seal 1 v. Biden,
574 F. Supp. 3d 1124 (M.D. Fla. 2021) 7, 28

Nielson v. Legacy Health Sys.,
230 F. Supp. 2d 1206 (D. Or. 2001) 11

Ojeda v. Kaiser Permanente Int'l, Inc.,
No. EDCV 22-1057-MWF, 2022 WL 18228249 (C.D. Cal. Nov. 29, 2022) 27

Parks Sch. of Bus., Inc. v. Symington,
51 F.3d 1480 (9th Cir. 1995) 15

Pasadena Republican Club v. W. Justice Ctr.,
985 F.3d 1161 (9th Cir. 2021) 15

Pilz v. Inslee,
No. 3:21-CV-05735-BJR, 2022 WL 1719172 (W.D. Wash. May 27, 2022) 20

Pokras v. Lewis,
No. CV17-06603-JVS, 2018 WL 1901121 (C.D. Cal. Feb. 14, 2018, *report and recommendation adopted*, 2018 WL 1896530 (C.D. Cal. Apr. 19, 2018) 21

Rasmussen v. Skagit Cnty.,
448 F. Supp. 2d 1203 (W.D. Wash. 2006) 3, 4, 11

Reid v. Pierce Cnty.,
136 Wn.2d 195, 961 P.2d 333 (1998) 25, 26

Repin v. State,
198 Wn. App. 243, 392 P.3d 1174 (2017) 24

Rodriguez v. Hemit,
No. C16-778 RAJ, 2018 WL 3618260 (W.D. Wash. July 30, 2018) 7

Saul v. United States,
928 F.2d 829 (9th Cir. 1991) 3, 28

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TABLE OF CONTENTS
(continued)

Page

Shavelson v. Haw. Civ. Rights Comm'n,
740 F. App'x 532 (9th Cir. 2018) 19

Sosa v. Alvarez-Machain,
542 U.S. 692 (2004) 10

Sutton v. Providence St. Joseph Med. Ctr.,
192 F.3d 826 (9th Cir. 1999) 11, 12, 14

Sylvia Landfield Tr. v. City of L.A.,
729 F.3d 1189 (9th Cir. 2013) 20

Thomas v. Catlin,
141 F. App'x 673 (9th Cir. 2005) 9

United States v. King Mountain Tobacco, Co.,
131 F. Supp. 3d 1088 (E.D. Wash. 2015) 18

We The Patriots USA, Inc. v. Hochul,
17 F.4th 266 (2d Cir. 2021) 4

West v. Atkins,
487 U.S. 42 (1988) 4

White v. Paulsen,
997 F. Supp. 1380 (E.D. Wash. 1998) 10

White v. Relay Res.,
No. C19-0284-JCC, 2019 WL 5677541 (W.D. Wash. Oct. 31, 2019) 24

Williams v. Brown,
567 F. Supp. 3d 1213 (D. Or. 2021) 5, 19, 20, 21

Wise v. Inslee,
No. 2:21-CV-0288-TOR, 2022 WL 1243662 (E.D. Wash. Apr. 27, 2022) 4

Wright v. Fred Hutchinson Cancer Research Ctr.,
269 F. Supp. 2d 1286 (W.D. Wash. 2002) 9

Statutes

10 U.S.C. § 980 ..... 10, 11, 22

21 U.S.C. § 360bbb-3 ..... passim

42 U.S.C. § 1983 ..... passim

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TABLE OF CONTENTS
(continued)

Page

Rules

Fed. R. Civ. P. 12(b)(6) 3

Regulations

21 C.F.R. § 312.3 18

45 C.F.R. § 46 ..... passim

45 C.F.R. § 46.103(a) 8

45 C.F.R. § 46.116 ..... 8, 9, 24

45 C.F.R. § 46.122 22

Constitutional Provisions

U.S. Const., amend. XIV 19, 20, 22

Other Authorities

FDA News Release, FDA Approves First COVID-19 Vaccine (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine 2, 6, 7, 18

International Covenant on Civil and Political Rights, Article VII 10

Restatement (Second) of Torts § 46(1) 25

Restatement (Second) of Contracts § 313 23

Restatement (Second) of Torts § 652D 26

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ATTORNEYS
600 University Street, Suite 3600, Seattle, WA 98101
Telephone 206.624.0900

I. INTRODUCTION

In early 2020, the world faced a health crisis: the COVID-19 pandemic. In response to the danger COVID-19 presented to the elderly and to individuals with other illnesses or co-morbidities, PeaceHealth, a not-for-profit private healthcare system, required that all employees receive the COVID-19 vaccine, subject to medical and religious exemptions. Am. Compl. ¶ 110. After PeaceHealth provided notice of its policy, the State of Washington issued an order requiring healthcare workers to receive the COVID-19 vaccine, subject to medical and religious exemptions. Plaintiffs refused the vaccine and did not seek an exemption. Plaintiffs no longer work at PeaceHealth.

Plaintiffs cannot state a federal claim. They allege that PeaceHealth, a private employer enforcing its private vaccination policy meant to protect its patients and employees, somehow acted under color of state law and violated their constitutional rights. In arguing that "no person can require anyone to inject an unlicensed investigational drug into their body as a condition of anything" (*id.* ¶ 147), Plaintiffs grossly mischaracterize PeaceHealth's vaccination policy. Plaintiffs do not have a constitutional right to employment with a healthcare provider while remaining unvaccinated. Plaintiffs' 42 U.S.C. § 1983 claims separately fail because PeaceHealth's private employee vaccine policy does not transform it into a state actor.

Plaintiffs' state law claims are similarly meritless. Plaintiffs rely on obvious misstatements of fact and disregard basic principles of law in a desperate attempt to concoct a claim. They allege that PeaceHealth breached "contracts" that are indisputably not contracts on their face, committed unspecified "torts" that Plaintiffs have not identified, and defamed Plaintiffs by telling the truth. Plaintiffs cannot state a plausible claim.

Ultimately, no amount of verbiage or bluster can circumvent reality—PeaceHealth was well within its rights to enforce its employee vaccination policy during the COVID-19 pandemic. Plaintiffs' Amended Complaint (Dkt. No. 8) should be dismissed with prejudice.

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ATTORNEYS
600 University Street, Suite 3600, Seattle, WA 98101
Telephone 206.624.0900

II. FACTUAL BACKGROUND

PeaceHealth is a not-for-profit, private healthcare system. Am. Compl. ¶¶ 19.2, 117. Liz Dunne is PeaceHealth's President and Chief Executive Officer. *Id.* ¶ 19.3. Doug Koekkoek (collectively with PeaceHealth and Ms. Dunne, the "PeaceHealth Defendants") is PeaceHealth's Chief Physician and Clinical Executive. *Id.* ¶ 19.4. On August 3, 2021,[1] PeaceHealth notified its employees of its policy requiring vaccination against COVID-19 by October 15, 2021, subject to medical and religious exemptions. *Id.* ¶¶ 110, 144. Plaintiffs acknowledge that PeaceHealth implemented this policy "at the height of the pandemic, when hospitalization rates soared, and SARS-CoV-2 variants abounded." *Id.* ¶ 8; *see also* Inslee Mot. to Dismiss at 2, 3-4, Dkt. 18 (describing the significant impact of the pandemic on Washingtonians and the healthcare industry). The Pfizer-BioNTech COVID-19 vaccine received full Food and Drug Administration ("FDA") authorization on August 23, 2021, roughly two months before PeaceHealth's deadline for vaccination. FDA News Release, FDA Approves First COVID-19 Vaccine (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine ("FDA News Release"). The State of Washington adopted similar COVID-19 vaccination mandates for healthcare workers through Proclamations 21-14 and 21-14.1 on August 9, 2021 and August 20, 2021, respectively. Am. Compl. ¶¶ 25, 26.

Plaintiffs did not comply with PeaceHealth's COVID-19 vaccination policy and were terminated.[2] *Id.* ¶ 249. Plaintiffs do not allege that they requested medical or religious exemptions to PeaceHealth's COVID-19 vaccine requirement. *See generally id.* Plaintiffs filed this lawsuit

[1] For reference, Plaintiffs' counsel filed a similar suit in Oregon against PeaceHealth, Ms. Dunne, Mr. Koekkoek, and Oregon government officials. *Sara Boysen et al. v. PeaceHealth et al.*, No. 6:23-cv-01229-AA (the "Oregon Case"). The Oregon plaintiffs allege they that received notice, "on August 03, 2021 via email," of PeaceHealth's "new policy that requires all caregivers to show proof of having received a complete series of COVID-19 vaccine doses or submit a qualifying medical exemption" by August 31, 2021. Oregon Compl., Dkt. No. 1 at ¶ 295. Plaintiffs here do not identify the August 3, 2021 policy notice date, only the date the policy was implemented, on August 30, 2021. Am. Compl. ¶¶ 110, 124.

[2] Two Plaintiffs allege that they are still employees. Am. Compl. ¶¶ 18.11, 18.60.

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on August 18, 2023. Dkt. No. 1. Plaintiffs filed their Amended Complaint on August 31, 2023, asserting 10 causes of action against the PeaceHealth Defendants. Dkt. No. 8. The PeaceHealth Defendants move to dismiss the Amended Complaint in its entirety.

III. LEGAL STANDARD

When, as here, plaintiffs fail to state a cognizable claim, dismissal is appropriate under Fed. R. Civ. P. 12(b)(6). A plaintiff's complaint must allege facts to state a claim for relief that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). "[A] plaintiff's obligation to provide the 'grounds' of his 'entitle[ment] to relief' requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do. Factual allegations must be enough to raise a right to relief above the speculative level." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007) (citations omitted; second brackets in original). The Court is "not bound to accept as true a legal conclusion couched as a factual allegation . . . ." *Id*. (citation omitted). Surviving a motion to dismiss thus requires a plaintiff to plead "more than an unadorned, the-defendant-unlawfully-harmed-me-accusation." *Iqbal*, 556 U.S. at 678 (citing *Twombly*, 550 U.S. at 555). Dismissal with prejudice is appropriate when no amendment can cure a deficient complaint. *Demos v. Brusic*, No. C22-954 RAJ-TLF, 2022 WL 16927720, at *2 (W.D. Wash. Sept. 14, 2022) (quoting *Saul v. United States*, 928 F.2d 829, 843 (9th Cir. 1991)). That is precisely the case here.

IV. ARGUMENT

A. Plaintiffs Fail to State a Claim Under 42 U.S.C. § 1983.

Plaintiffs' first five causes of action are variations of claims under 42 U.S.C. § 1983 ("Section 1983"), all of which fail as a matter of law for at least two reasons. First, no matter how the claims are characterized, Plaintiffs fail to plead a "right secured by the Constitution or laws of the United States" of which they were deprived by the PeaceHealth Defendants. *Rasmussen v. Skagit Cnty.*, 448 F. Supp. 2d 1203, 1209 (W.D. Wash. 2006) (quoting *Am. Mfrs. Mut. Ins. Co. v. Sullivan*, 526 U.S. 40, 49 (1999)). Second, Plaintiffs fail to plausibly allege that any PeaceHealth Defendant acted "under color of state law" such that their conduct is fairly considered state action.

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Id. (quoting *West v. Atkins*, 487 U.S. 42, 45 (1988). Plaintiffs' various formulations of Section 1983 claims also suffer from additional infirmities that require their dismissal.

1. There Is No Right to Employment at a Healthcare Facility While Refusing Vaccination.

To plead a Section 1983 claim, a plaintiff "must allege the violation of a right secured by the Constitution and laws of the United States." *Naffe v. Frey*, 789 F.3d 1030, 1035 (9th Cir. 2015) (quoting *West*, 487 U.S. at 48). Plaintiffs' Section 1983 claims all rely on the proposition that Plaintiffs have a federally protected right to employment at PeaceHealth while refusing the COVID-19 vaccine. *See* Am. Compl. ¶ 21 ("Plaintiffs adamantly assert that an individual has the . . . federally secured right to refuse administration of . . . [the] Pfizer BioNTech COVID-19 Vaccine . . . without incurring a penalty or losing a benefit to which they are otherwise entitled."). As decades of precedent demonstrate, no such right exists.

Over a century ago, the U.S. Supreme Court established that there is no fundamental right to refuse vaccination because the "liberty secured by the Constitution . . . does not import an absolute right in each person to be, at all times and in all circumstances, wholly freed from restraint" and because communities have "the right to protect [themselves] against an epidemic of disease which threatens the safety of [their] members." *Jacobson v. Massachusetts*, 197 U.S. 11, 26-27, 39 (1905) (upholding criminal conviction of appellant who refused to receive smallpox vaccine as required by state law). Modern courts—including federal courts in Washington—have reached the same conclusion, holding that "as challenges to COVID-19 vaccine mandates have progressed, this Court, and others across the country, have held facially neutral and generally applicable state vaccination mandates are subject only to rational basis" review. *Wise v. Inslee*, No. 2:21-CV-0288-TOR, 2022 WL 1243662, at *4 (E.D. Wash. Apr. 27, 2022) (holding that Washington State's vaccine requirement for state employees and healthcare workers "easily survives federal constitutional scrutiny"); *see also We The Patriots USA, Inc. v. Hochul*, 17 F.4th 266, 293 (2d Cir. 2021) ("Both this Court and the Supreme Court have consistently recognized

that the Constitution embodies no fundamental right that in and of itself would render vaccine requirements imposed in the public interest, in the face of a public health emergency, unconstitutional." (citing *Jacobson*, 197 U.S. at 25-31)); *Williams v. Brown*, 567 F. Supp. 3d 1213, 1226 (D. Or. 2021) ("In the context of COVID-19, courts across the country have concluded that *Jacobson* established that there is no fundamental right to refuse vaccination.").

Plaintiffs ignore this well-settled law and try to stretch their legally invalid argument a step further. Plaintiffs do not simply claim a general right to be free from a government-mandated vaccine—rather, they claim a federally protected right to ***continued employment*** at PeaceHealth despite their refusal to receive a vaccine required by their employer. Am. Compl. ¶ 110 (alleging that the PeaceHealth Defendants "issu[ed] a new company policy" requiring that "healthcare workers . . . be fully vaccinated against COVID-19"). No legal support for this proposition exists. *Kheriaty v. Regents of Univ. of Cal.*, No. 22-55001, 2022 WL 17175070, at *1 (9th Cir. Nov. 23, 2022) ("Kheriaty fails to offer any appropriate historical example to establish a 'fundamental right' to be free from a vaccine mandate at a workplace. To the contrary, the Supreme Court upheld a much more onerous vaccine requirement in *Jacobson* . . . ."); *Jensen v. Biden*, No. 4:21-CV-5119-TOR, 2022 WL 18860405, at *2 (E.D. Wash. Jan. 7, 2022) (dismissing plaintiff's Section 1983 claim challenging Washington State's vaccine requirement in part because it "does not require that anyone receive the vaccine involuntarily" as "state employees have a choice: they can choose to get vaccinated or apply for an exemption, or they can choose to no longer work for the state"). The only "right" Plaintiffs allege PeaceHealth violated does not exist in the United States Constitution.[3] No Section 1983 claims can be asserted.

Plaintiffs' mischaracterization of the COVID-19 vaccines and the federal statutory regime concerning emergency authorizations of drugs does not save their claims. *First*, Plaintiffs

[3] Healthcare employee vaccine requirements withstand constitutional scrutiny under a rational basis review. *See Jensen*, 2022 WL 18860405, at *2; *Williams*, 567 F. Supp. 3d at 1227; *see also Biden v. Missouri*, 595 U.S. 87, 95 (2022) ("Vaccine requirements are a common feature of the provision of healthcare in America: Healthcare workers around the country are ordinarily required to be vaccinated for diseases such as hepatitis B, influenza, and measles, mumps, and rubella.").

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repeatedly describe COVID-19 vaccines as an "unlicensed investigational drug." *See* Am. Compl. ¶¶ 28, 34, 50, 75, 93, 207. This characterization is meaningless, as Plaintiffs fail to explain the legal significance of the term or how it would cause any vaccine requirement to fall outside the purview of *Jacobson*. More importantly, Plaintiffs are wrong. While Plaintiffs acknowledge that various COVID-19 vaccines in development received Emergency Use Authorization ("EUA") from the FDA in December 2020, they ignore the fact that the Pfizer-BioNTech COVID-19 vaccine received ***full*** FDA authorization on August 23, 2021—months before PeaceHealth required any employee to be vaccinated. *See Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1055-56 (D.N.M. 2022) ("Pfizer's vaccine received . . . **full FDA approval** for individuals 16 and older."); FDA News Release, https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine. By the time Plaintiffs were required to receive a COVID vaccine under PeaceHealth's policy, an FDA-approved vaccine was available. Plaintiffs thus cannot credibly allege that they were required to take any "investigational" drug. PeaceHealth's policy (and necessity for keeping its patients and employees safe) cannot form the basis for a Section 1983 claim.

Plaintiffs also point to a variety of statutes and documents in an effort to establish their alleged right, but none of them confers a federally secured right.

a. 21 U.S.C. § 360bbb-3 Is Inapplicable and Confers No Actionable Right.

Plaintiffs' reliance on 21 U.S.C. § 360bbb-3 ("Section 360bbb-3") is misplaced. *See, e.g.*, Am. Compl. ¶¶ 194, 201, 205, 210. Section 360bbb-3, which is part of the Food, Drug, and Cosmetic Act ("FDCA"), concerns "authorization for medical products for use in emergencies" and generally allows the Secretary of Health and Human Services to authorize drugs for use in emergencies and to establish the conditions of use. *See generally* 21 U.S.C. § 360bbb-3. This statute cannot support a Section 1983 claim for three reasons.

First, there is no private right of action under Section 360bbb-3. "Section 1983 does not provide a remedy for violations of federal statutes unless those statutes create a private right of action that is enforceable in a damages action, and 'anything short of an unambiguously conferred right' will not support such an action." *Rodriguez v. Hemit*, No. C16-778 RAJ, 2018 WL 3618260, at *4 (W.D. Wash. July 30, 2018) (quoting *Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002)). Courts across the country have consistently held the same, including in the COVID-19 vaccination context. *See Navy Seal 1 v. Biden*, 574 F. Supp. 3d 1124, 1130 (M.D. Fla. 2021) (holding that the "informed consent" provisions of 21 U.S.C. § 360bbb-3(e)(1)(A) "confer[] no private right of action" through which plaintiffs could challenge requirement that employees of federal contractors be vaccinated against COVID-19); *Johnson v. Tyson Foods, Inc.*, 607 F. Supp. 3d 790, 806 (W.D. Tenn. 2022) ("Plaintiff has failed to state a claim for Defendants' alleged violation of the [FDCA], 21 U.S.C. § 360bbb-3 . . . because there is no private right of action under that statute.").

Second, Section 360bbb-3 does not apply to PeaceHealth's vaccine policy because Plaintiffs could have received the FDA-authorized COVID-19 vaccine. Am. Compl. ¶ 110. The FDA approved the Pfizer-BioNTech COVID-19 vaccine months before PeaceHealth required its employees to be vaccinated. *Legaretta*, 603 F. Supp. 3d at 1055-56; FDA News Release, https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine. Thus, even if Section 360bbb-3 applied to PeaceHealth in this context—and it does not—PeaceHealth's vaccine policy did not require any employee to take a product not approved by the FDA.

Third, Section 360bbb-3 does not apply to PeaceHealth in its capacity as a private employer requiring its employees to receive the COVID-19 vaccine. The affirmative obligations under Section 360bbb-3 apply to "a person who carries out any activity for which the authorization is issued" and "health care professionals administering the product," and only for "unapproved product[s]." 21 U.S.C. § 360bbb-3(e)(1)(A); *see also Johnson v. Brown*, 567 F. Supp. 3d 1230, 1256 (D. Or. 2012) (holding that the "conditions of informed consent" in 21 U.S.C. § 360bbb-3

apply only to "the medical providers who administer the vaccine, not those who issue vaccine mandates"). While PeaceHealth functioned as an administrator of COVID-19 vaccinations, that context is separate from its employee policy. Courts have unambiguously held that Section 360bbb-3 does not prevent private employers from implementing COVID-19 vaccination requirements. *Bridges v. Houston Methodist Hosp.*, 543 F. Supp. 3d 525, 527 (S.D. Tex. 2021) (rejecting plaintiff's challenge to hospital employer's COVID-19 vaccination policy that "misconstrues [Section § 360bbb-3]," which "does not apply at all to private employers like the hospital in this case"). Plaintiffs do not allege (nor could they) that PeaceHealth required its employees be vaccinated ***by PeaceHealth***. Section § 360bbb-3 thus gives Plaintiffs no basis for their Section 1983 claims.

b. 45 C.F.R. § 46 Is Inapplicable and Confers No Actionable Right.

Plaintiffs also mistakenly invoke 45 C.F.R. § 46.116 and "Federal Wide Assurance" ("FWA") as a basis for their purported constitutional right to employment without vaccination. Am. Compl. ¶¶ 73, 74 n.21, 78 n.23, 80 n.24, 81, 194, 201, 205, 210. 45 C.F.R. § 46.116(a)(1) concerns "informed consent" for "human subject[s]" of experiments. PeaceHealth's implementation of its vaccination policy, however, was not "research," and Plaintiffs were not "human subjects." Courts have repeatedly rejected similar attempts to apply 45 C.F.R. § 46.116 to vaccine requirements for continued employment at a healthcare facility. *See Bridges*, 543 F. Supp. 3d at 527-28 ("Bridges has again misconstrued [45 C.F.R. § 46.116], and she has now also misrepresented the facts. The hospital's employees are not participants in a human trial. . . . Bridges's claim that the injection requirement violates 45 C.F.R. § 46.116 also fails."). It simply does not apply here.

The FWA is also inapplicable. The FWA applies to institutions "engaged in research that is covered by this policy . . . ." 45 C.F.R. § 46.103(a). PeaceHealth did not "engage[] in research" by implementing an employee vaccination requirement.

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Further, neither 45 C.F.R. § 46.116 nor the FWA can supply the federally secured right for a Section 1983 claim because they "do[] not confer a private right of action." *Thomas v. Catlin*, 141 F. App'x 673, 674 (9th Cir. 2005); *Wright v. Fred Hutchinson Cancer Research Ctr.*, 269 F. Supp. 2d 1286, 1289 (W.D. Wash. 2002) ("Only Congress can create new rights enforceable under § 1983: agency regulations cannot give rise to a private cause of action where the authorizing statute does not confer such a right. . . . Because plaintiffs have not identified any statutory basis for the private rights of action they seek to assert, their claims under . . . 45 C.F.R. § 46 must fail."). These regulations cannot sustain any of Plaintiffs' Section 1983 claims.

c. The Belmont Report Is Inapplicable and Confers No Actionable Right.

Plaintiffs next argue that the Belmont Report "unambiguously create[s] rights enforceable pursuant to 42 U.S.C. § 1983." Am. Compl. ¶¶ 194, 201, 205, 210. Plaintiffs are wrong. The Belmont Report is not a statute or even a regulation. It is a report drafted by the National Commission for the Protection of Human Subjects of Biomedical and Behavioral Research, which Plaintiffs admit only concerns "valid consent" to "[a]n agreement to participate in research." *Id.* ¶ 196. PeaceHealth's vaccination requirement is not "research," and the Belmont Report does not apply to such a condition of employment. Further, because the Belmont Report does not confer a private right of action, it cannot form the basis for a Section 1983 claim. *See Kriley v. Nw. Mem'l Healthcare*, No. 22-1606, 2023 WL 371643, at *2 (7th Cir. Jan. 24, 2023) (holding that the Belmont Report is a "statement[] of principles" that does not "create private rights of action").

d. EUA Scope of Authorization Letters Are Inapplicable and Confer No Actionable Right.

Plaintiffs also mistakenly rely on EUA Scope of Authorization Letters ("Letters") regarding COVID-19 vaccines as an alleged source of rights enforceable through Section 1983. Am. Compl. ¶¶ 194, 201, 205, 210. The Letters are inapplicable: Plaintiffs were not "human subjects" in a research endeavor—they were employees of a private hospital system that implemented a vaccination requirement for COVID-19 as a condition of employment. And much

like the statutory provisions to which such Letters owe their existence (i.e., 21 U.S.C. § 360bbb-3), the Letters confer no private right of action.

e. The International Covenant on Civil and Political Rights Is Inapplicable and Confers No Actionable Right.

Plaintiffs also cite "Article VII of the ratified International Covenant on Civil and Political Rights" ("ICCPR") treaty as an alleged source of federally enforceable rights. Am. Compl. ¶¶ 194, 201, 205, 210. Plaintiffs acknowledge that this treaty merely affirms that "no one shall be subjected without his free consent to medical or scientific experimentation." *Id.* ¶ 198. Plaintiffs do not, however, allege any facts plausibly showing that an employer's vaccine requirement is "medical or scientific experimentation," and courts have already rejected that notion as applied to COVID-19 vaccine requirements. *Bridges*, 543 F. Supp. 3d at 527 ("The hospital's employees are not participants in a human trial."). Again, the ICCPR offers no private right of action. *Sosa v. Alvarez-Machain*, 542 U.S. 692, 735 (2004) ("[T]he United States ratified the Covenant on the express understanding that it was not self-executing and so did not itself create obligations enforceable in the federal courts."); *White v. Paulsen*, 997 F. Supp. 1380, 1387 (E.D. Wash. 1998) ("[I]t is apparent that the parties to the ICCPR did not intend for its provisions to be self-executing in the sense of automatically creating a private right of action cognizable by citizens of a State. Supporting this conclusion is the fact that the United States Senate expressly declared that the relevant provisions of the ICCPR were not self-executing . . . ." (footnote and citation omitted)).

f. 10 U.S.C. § 980 Is Inapplicable and Confers No Actionable Right.

Plaintiffs next assert 10 U.S.C. § 980 as an alleged source of their federally secured right. Am Compl. ¶¶ 194, 215. This statute is inapplicable. It prohibits "[f]unds appropriated to the Department of Defense" from being used "for research involving a human being as an experimental subject" without informed consent. 10 U.S.C. § 980(a). Plaintiffs allege no facts suggesting that PeaceHealth's COVID-19 vaccination requirement was "research" or involved a human "experimental subject," or that any funds appropriated to the Department of Defense were

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used for any such research. Further, the statute confers no private right of action. *See* 10 U.S.C. § 980.

* * *

In sum, none of the sources relied upon by Plaintiffs confer a constitutional right to work at PeaceHealth while refusing the COVID-19 vaccination. Plaintiffs' Section 1983 claims are not premised on a federally protected right that the PeaceHealth Defendants have violated. For this reason, they should be dismissed.

2. The PeaceHealth Defendants Are Not State Actors.

As a separate and independent basis for dismissal of their federal claims, Plaintiffs fail to plausibly allege that the PeaceHealth Defendants are "person[s] who may fairly be said to be a state actor." *Lugar v. Edmondson Oil Co.*, 457 U.S. 922, 937 (1982); *see also Rasmussen*, 448 F. Supp. 2d at 1209 ("To state a claim under [Section 1983], Plaintiffs must establish . . . that 'the alleged deprivation was committed under color of state law.'" (quoting *Am. Mfrs. Mut. Ins. Co.*, 526 U.S. at 49-50)). "The state-action element in [Section] 1983 'excludes from its reach merely private conduct, no matter how discriminatory or wrongful.'" *Caviness v. Horizon Cmty. Learning Ctr., Inc.*, 590 F.3d 806, 812 (9th Cir. 2010) (quoting *Am. Mfrs. Mut. Ins. Co.*, 526 U.S. at 50). Accordingly, "[w]hen addressing whether a private party acted under color of law, [courts] . . . start with the presumption that private conduct does not constitute governmental action." *Sutton v. Providence St. Joseph Med. Ctr.*, 192 F.3d 826, 835 (9th Cir. 1999). The Ninth Circuit applies this presumption rigorously and has thus "consistently dismissed private hospitals, doctors, and attorneys in [Section] 1983 claims for failing to come within the color of state law." *Nielson v. Legacy Health Sys.*, 230 F. Supp. 2d 1206, 1209 (D. Or. 2001); *see also Franklin v. Fox*, 312 F.3d 423, 446 (9th Cir. 2002) ("[A]bsent some showing that a private party had some control over state officials' decision [to commit the challenged act], the private party did not proximately cause the injuries stemming from [the act]." (brackets in original; citation omitted)). Mere adherence to an existing law does not transform private conduct into governmental action—"something more"

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must be present. *Sutton*, 192 F.3d at 835 (citing *Lugar*, 457 U.S. at 939 ("Action by a private party pursuant to this statute, without something more, was not sufficient to justify a characterization of that party as a 'state actor.'")).

Plaintiffs acknowledge that each PeaceHealth Defendant is a "private part[y]," Am. Compl. ¶ 117, and thus are presumed not to be "state actors." Plaintiffs fail in their attempt to overcome that presumption.

a. Plaintiffs Fail to Plead That PeaceHealth's Vaccine Requirement Is a "Public Function."

"Under the public function test" of state action, "when private individuals or groups are endowed by the State with powers or functions [that are] governmental in nature, they become agencies or instrumentalities of the State and subject to its constitutional limitations." *Lee v. Katz*, 276 F.3d 550, 554-55 (9th Cir. 2002) (quoting *Evans v. Newton*, 382 U.S. 296, 299 (1966)). "The public function test is satisfied only on a showing that the function at issue is 'both traditionally and exclusively governmental.'" *Kirtley v. Rainey*, 326 F.3d 1088, 1093 (9th Cir. 2003) (quoting *Lee*, 276 F.3d at 555).

Plaintiffs offer three conclusory allegations in support of this test: (1) the PeaceHealth Defendants exercised "powers exclusively held by the federal government and Washington State"; (2) "the power is part of Washington State's prerogative (the State did not have to volunteer to participate)"; and (3) "the power is such that the State itself is obligated to perform due to Governor Inslee voluntarily agreeing to perform for the CDC." Am. Compl. ¶ 121. These allegations appear to conflate Washington's agreement with the CDC to administer COVID-19 vaccines with the PeaceHealth Defendants' policy that its employees obtain a COVID-19 vaccine. They do not establish a public function. Courts have consistently held that a "private business's implementation of an employee vaccination policy is not akin to any of 'those limited activities—for example running a city—that have "traditionally *and exclusively*" been performed by the government.'" *Tyson Foods*, 607 F. Supp. 3d at 800 (citation omitted); *see also Ciraci v. J.M.*

Smucker Co., 62 F.4th 278, 282 (6th Cir. 2023) ("It is hardly unheard of for private companies to make vaccination a condition of employment."); *Anderson v. United Airlines, Inc.*, 577 F. Supp. 3d 1324, 1333 (M.D. Fla. 2021) (rejecting plaintiff's assertion that private defendant "has taken on a public function" through the implementation of a COVID-19 vaccine requirement for employees).

Plaintiffs' own case citations undercut their reliance on this test. In *Flagg Brothers, Inc. v. Brooks*, 436 U.S. 149 (1978), the U.S. Supreme Court held that an evicted plaintiff—whose furniture was stored at the defendant's warehouse on arrangement by the city marshal—did ***not*** state a Section 1983 claim against the defendant, who threatened to sell the furniture when the plaintiff would not pay for storage. *Id.* at 153, 166; Am. Compl. ¶ 121 n.37. The Court noted that "very few" functions have been "exclusively reserved to the State," identifying "elections" and private property that "has taken on *all* the attributes of a town," including "streets, a system of sewers, a sewage disposal plant, and a 'business block' on which business places are situated" as their only two examples. *Flagg Bros.*, 436 U.S. at 158-59 (citation omitted). In *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345 (1974), the Supreme Court held that a plaintiff failed to state a Section 1983 claim against a private entity in Pennsylvania that supplied (and then cut off) the plaintiff's electricity. The Court succinctly noted "that . . . supplying . . . utility service is not traditionally the exclusive prerogative of the State," *Jackson*, 419 U.S. at 353. Given these cases, issuing a vaccine requirement for private healthcare workers is not within the exclusive "prerogative" of the State.

Although inapplicable under these facts, courts have also rejected the argument that a private entity carries out a "public function" by enforcing a government vaccine mandate.[4] *Ciraci*, 62 F.4th at 282 ("That Smucker's carried out the government's vaccine mandate in the course of making jam does not change anything. . . . A vaccine mandate does not count as a public function

[4] Such a claim is factually implausible because PeaceHealth provided notice of its policy to employees *before* the State issued its proclamations. *See supra* n.1.

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traditionally handled just by the State." (internal quotation marks and citation omitted)). Ultimately, no allegation in the Amended Complaint plausibly suggests that the implementation of a private vaccination requirement for company employees is a "public function" that could transform private parties into state actors. Plaintiffs thus fail to show any PeaceHealth Defendant is a state actor under the "public function test."

b. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through "State Compulsion."

Plaintiffs' reliance on the "state compulsion test" also fails. Am. Compl. ¶ 122. "The compulsion test considers whether the coercive influence or 'significant encouragement' of the state effectively converts a private action into a government action." *Kirtley*, 326 F.3d at 1094. Courts considering this test look to whether the defendant functions independently of the relevant government entity. *Id.* at 1094; *Heggem v. Holmes*, No. C10-1997-RSM-MAT, 2011 WL 7758243, at *6 (W.D. Wash. Dec. 9, 2011) (finding that a "private chemical dependency counselor" was not a state actor under the state compulsion test because she "functions independently from the State, exercising professional obligations primarily to his or her client"), *report and recommendation adopted*, 2012 WL 1378786 (W.D. Wash. Apr. 20, 2012).

Plaintiffs allege that Governor Inslee's Proclamation 21-41.1 compelled PeaceHealth to implement its vaccine policy, as that proclamation "requires healthcare providers like PeaceHealth to require its employees to be vaccinated against COVID-19." Am. Compl. ¶ 124. This allegation is false—PeaceHealth notified its employees of its policy before Governor Inslee issued the proclamation. *See supra* n.1. But even accepting this allegation as true, this is the wrong kind of "compulsion." *Sutton*, 192 F.3d at 841 ("In summary, Supreme Court precedent does not suggest that governmental compulsion in the form of a generally applicable law, without more, is sufficient to deem a private entity a governmental actor."). To accept Plaintiffs' argument "would be to convert every employer . . . into a governmental actor every time it complies with a presumptively valid, generally applicable law . . . ." *Id.* at 838. Plaintiffs' conclusory allegation that PeaceHealth

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was "encouraged" to implement its vaccination policy does not amount to compulsion. *See* Am. Compl. ¶ 124 ("[I]t is unassailable that PeaceHealth was encouraged to participate in this unlawful activity."). Plaintiffs failed to plead that any PeaceHealth Defendant was a state actor through state compulsion.

c. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through the "Joint Action" Test.[5]

Plaintiffs' reliance on the joint action test also fails. Am. Compl. ¶ 125. This test asks whether "the state has so far insinuated itself into a position of interdependence with the private entity that it must be recognized as a joint participant in the challenged activity. This occurs when the state knowingly accepts the benefits derived from unconstitutional behavior." *Parks Sch. of Bus., Inc. v. Symington*, 51 F.3d 1480, 1486 (9th Cir. 1995) (internal quotation marks, brackets, and citation omitted).

Plaintiffs' allegations regarding alleged joint action between PeaceHealth and the State fail to meet this standard. Plaintiffs repeat the same arguments about "informed consent" under 21 U.S.C. § 360bbb-3, and that Washington therefore somehow "also required PeaceHealth" to get informed consent regarding COVID-19 vaccines. Plaintiffs again conflate an employer's policy requiring vaccination with that employer administering the vaccines itself. Plaintiffs make numerous allegations regarding PeaceHealth's responsibilities while administering vaccines, including that it must receive "informed consent" from patients, and that "PeaceHealth is under express COVID-19 vaccination protocols by the State and the CDC." Am. Compl. ¶¶ 126, 128, 130. PeaceHealth's vaccination policy for employees, however, is entirely separate from its status as an administrator of COVID-19 vaccines, and the policy (which is all that is at issue in this case) is not implicated by any of the sources Plaintiffs cite.

[5] This test is also referred to as the "symbiotic relationship" test. *Pasadena Republican Club v. W. Justice Ctr.*, 985 F.3d 1161, 1167 (9th Cir. 2021) (referring to the "'joint action' or 'symbiotic relationship' test").

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Moreover, Plaintiffs do not allege that they actually received a COVID-19 vaccination. 21 U.S.C. § 360bbb-3 only requires conditions "designed to ensure that ***individuals to whom the product is administered are informed***" of any risks associated with the FDA-unapproved product. 21 U.S.C. § 360bbb-3(e)(1)(A)(ii) (emphasis added). No Plaintiff alleges that he or she was an "individual[] to whom the product [was] administered," and thus these allegations could never establish any PeaceHealth Defendant as a state actor in this context.

The remaining "allegations"[6] Plaintiffs offer in support of their "joint action" theory are either wild mischaracterizations or good examples of the kind of "legal conclusion[s] couched as [] factual allegation[s]" that the Court is "not bound to accept as true." *Twombly*, 550 U.S. at 555 (citation omitted). And again, even if these allegations could somehow be credited, (1) PeaceHealth's COVID-19 vaccination administration is entirely separate from its employee vaccination policy; (2) PeaceHealth's vaccination policy was only implemented after the FDA approved the Pfizer-BioNTech COVID-19 vaccine, meaning its policy did not require any employee to receive any drug under EUA; and (3) no Plaintiff is alleged to have received any COVID-19 vaccine. None of Plaintiffs' allegations plausibly establish joint action between any PeaceHealth Defendant and any government entity as concerns its employee vaccination policy.

d. Plaintiffs Fail to Plead That Any PeaceHealth Defendant Acted Under Color of Law Through the "Close Nexus" Test.

Finally, Plaintiffs sparingly (only in footnotes) allude to the "close nexus" test of state action. *See* Am. Compl. ¶¶ 130 n.47, 137 n.50. This test asks whether "there is [] such a close nexus between the State and the challenged action that the seemingly private behavior may be

[6] *See* Am. Compl. ¶ 127 ("The State and PeaceHealth are in a symbiotic relationship to conduct 45 CFR § 46 'research' activities for all EUA COVID-19 drugs . . . ." (footnote omitted)); *id*. ¶ 129 ("From the time a person walks into PeaceHealth's facility to determine whether they will participate in the use of a COVID-19 EUA drug to the time they walk out . . . they are under State Action because the government fully funds the EUA drugs, ancillary supplies, administrative overhead, and post-administration research activities . . . ."); *id*. ¶ 137 (alleging that PeaceHealth "would no longer allow Plaintiffs to access living wages after October 15, 2021, if they refused to inject an unlicensed investigational new drug into their bodies" despite the FDA fully approving the Pfizer-BioNTech COVID-19 vaccine in August 2021).

fairly treated as that of the State itself." *Kirtley*, 326 F.3d at 1095 (quoting *Brentwood Acad. v. Tenn. Secondary Sch. Athletic Ass'n*, 531 U.S. 288, 295 (2001)).

Plaintiffs cannot meet this test for state action because Plaintiffs do not allege any facts about the challenged action: the enforcement of PeaceHealth's vaccination policy. Plaintiffs' recitation of PeaceHealth's responsibilities in the field of vaccine *administration* has no relevance here, as the challenged policy does not require employees to be vaccinated by PeaceHealth specifically. Related challenges based on the "close nexus" test have been rejected. *Belgau v. Inslee*, 975 F.3d 940, 948 (9th Cir. 2020) (holding that a "merely contractual relationship between the government and the non-governmental party does not support joint action"); *Ciraci*, 62 F.4th at 282 (rejecting contention that a private company carrying out a government vaccine mandate turns the company into a state actor).

* * *

Plaintiffs have not plausibly alleged any basis for their allegation that the PeaceHealth Defendants were "state actors" by virtue of implementing and enforcing an employee vaccination policy. Thus, no PeaceHealth Defendant is subject to suit under Section 1983. For this reason as well, all five of Plaintiffs' Section 1983 claims against the PeaceHealth Defendants should be dismissed.

3. Plaintiffs' Section 1983 Claims Warrant Dismissal on Additional Bases.

All five of Plaintiffs' Section 1983 claims are subject to dismissal as set forth above. Even if Plaintiffs could plausibly allege a federal right and could credibly allege that the PeaceHealth Defendants are state actors (they cannot), additional independent grounds exist for dismissal of Plaintiffs' Section 1983 claims.

a. "Subjected to Investigational Drug Use."

Though inartfully pled, all of Plaintiffs' Section 1983 claims rely on the proposition that they were "unlawfully subjected . . . to the use of investigational medical products." *See, e.g.*, Am. Compl. ¶¶ 8, 28, 110, 117, 199, 207. This assertion is demonstrably false. An "investigational

new drug" is "a new drug or biological drug that is used in clinical investigations." 21 C.F.R. § 312.3; *see also* Am. Compl. ¶ 33 n.6. Plaintiffs do not allege that they were part of a clinical trial or that they ever received a COVID-19 vaccine—the only "investigational drug" they mention. Even if they had received a vaccine, PeaceHealth's vaccination policy did not subject Plaintiffs to any "investigational" drug because the Pfizer-BioNTech COVID-19 vaccine received full FDA authorization in August 2021—and thus was no longer "investigational." *See Legaretta*, 603 F. Supp. 3d at 1055-56 ("Pfizer's vaccine received . . . **full FDA approval** for individuals 16 and older."); FDA News Release, https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine. Count One ("Subjected to Investigational Drug Use") necessarily fails, as do Plaintiffs' other four Section 1983-based claims.

b. The Unconstitutional Conditions Doctrine.

Count Two asserts that PeaceHealth's vaccination requirement violated the unconstitutional conditions doctrine because the PeaceHealth Defendants "required Plaintiffs to barter their rights as a condition to enjoy the . . . benefits of employment." Am. Compl. ¶ 202. This allegation does not, however, implicate the unconstitutional conditions doctrine, which "vindicates the Constitution's enumerated rights by preventing the government from coercing people into giving them up." *Koontz v. St. Johns River Water Mgm't Dist.*, 570 U.S. 595, 604 (2013); *United States v. King Mountain Tobacco, Co.*, 131 F. Supp. 3d 1088, 1097 (E.D. Wash. 2015) ("The government may not deny a benefit to a person because he exercises a constitutional right." (citation omitted)). This doctrine does not apply. No constitutional right exists in this context. *See supra* Section IV.A.1. Indeed, COVID-19 vaccination requirements for public employers are not an "unconstitutional condition." *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 566 (W.D. Va. 2022) (dismissing plaintiff's constitutional conditions claim regarding employer's COVID-19 vaccination requirement, reasoning that the only "benefit" at issue was "at-will employment" to which the plaintiff was "not constitutionally entitled" and that "an at-will employee . . . generally has no claim based on the Constitution at all" (ellipsis in

original; citations omitted). PeaceHealth is a private employer, and each Plaintiff was an at-will employee. Because Plaintiffs' employment at PeaceHealth is not a "government benefit" to which they are "constitutionally entitled," the unconstitutional conditions doctrine is inapplicable. The claim should be dismissed.

c. Equal Protection Clause.

In Count Three, Plaintiffs assert that PeaceHealth's vaccination policy violates the Fourteenth Amendment's Equal Protection Clause. Am. Compl. ¶¶ 206-08. To state a claim, a plaintiff must allege that "the defendants acted with an intent or purpose to discriminate against the plaintiff based upon membership in a protected class." *Barren v. Harrington*, 152 F.3d 1193, 1194 (9th Cir. 1998). Plaintiffs do not even attempt to plead that they belong to a "protected class." *Shavelson v. Haw. Civ. Rights Comm'n*, 740 F. App'x 532, 534 (9th Cir. 2018). The only conceivable class would be persons who declined a COVID-19 vaccination, but this would necessarily fail for two reasons. First, PeaceHealth's vaccination requirement applied equally to all employees—subject to religious or medical exemptions. Second, and more critically, "unvaccinated individuals do not constitute a suspect class." *George v. Grossmont Cuyamaca Cmty. Coll. Dist. Bd. of Governors*, No. 22-cv-0424-BAS-DDL, 2022 WL 16722357, at *10 (S.D. Cal. Nov. 4, 2022); *Williams*, 567 F. Supp. 3d at 1228 ("The Court is fully in agreement with this growing consensus that no fundamental right or suspect classification is implicated by the Oregon vaccine mandates . . . ."); *see also McArthur v. Brabrand*, 610 F. Supp. 3d 822, 839-42 (E.D. Va. 2022) (dismissing plaintiff's equal protection claim because plaintiff failed to combat "several cases holding that unvaccinated people do not constitute a suspect class"); *Halgren v. City of Naperville*, 577 F. Supp. 3d 700, 753 (N.D. Ill. 2021) ("Plaintiffs have not identified any legal support for the notion that vaccination status alone is a traditional suspect (or quasi-suspect) class within the meaning of the Equal Protection Clause."). Because Plaintiffs do not and could not plead that they are members of a suspect class, their challenge to PeaceHealth's vaccine policy is subject to rational basis review.

Courts have "no trouble discerning a legitimate state interest in slowing the spread of COVID-19" and have consistently concluded that "vaccine mandates are rationally related to furthering that interest." *Williams*, 567 F. Supp. 3d at 1228; *Kheriaty*, 2021 WL 4714664, at *7-9. The equal protection claim should be dismissed.

d. Due Process Clause.

Count Four alleges that the PeaceHealth Defendants violated both Plaintiffs' "substantive" and "procedural" rights under the "Due Process Clause of the Fourteenth Amendment." Am. Compl. ¶¶ 211-13. Regarding substantive due process—which "protects individuals from arbitrary deprivation of their liberty by the government," *Sylvia Landfield Tr. v. City of L.A.*, 729 F.3d 1189, 1195 (9th Cir. 2013) (citation omitted)—this claim should be dismissed for all the reasons explicated in Sections IV.A.1 and IV.A.2.

Any procedural due process claim fails for the same reasons. Such a claim requires a plaintiff to "establish that he had a protectable property interest" and that "he was denied this property right without the process which was due under the circumstances." *Bateson v. Geisse*, 857 F.2d 1300, 1305 (9th Cir. 1988). Plaintiffs have not alleged that they were denied any process that they were due. Though doctrine developed in the context of government action does not—for obvious reasons—apply to private actors like the PeaceHealth Defendants, it is well established that "'laws of general applicability affecting a broad geographic area' ordinarily do not implicate individual procedural due process concerns." *Mendez v. City of Boise*, 845 F. App'x 636, 637 (9th Cir. 2021) (quoting *Hotel & Motel Ass'n of Oakland v. City of Oakland*, 344 F.3d 959, 968-70 (9th Cir. 2003)). So, to the extent Plaintiffs were entitled to process, PeaceHealth's vaccine requirement is akin to a "law" of general applicability—all of PeaceHealth's employees must be vaccinated against COVID-19, subject to religious or health exemptions. Such a requirement does not implicate procedural due process concerns. *Pilz v. Inslee*, No. 3:21-CV-05735-BJR, 2022 WL 1719172, at *7 (W.D. Wash. May 27, 2022) ("The Court joins other '[d]istrict courts around the country [that] have' rejected procedural due process challenges 'to employer-issued vaccine

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ATTORNEYS
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Telephone 206.624.0900

mandates during the COVID-19 pandemic, finding employees are not entitled to greater service than what is provided by enactment of the mandates themselves.'" (brackets in original; citation omitted)); *Williams*, 567 F. Supp. 3d at 1224 ("In this case, the vaccine mandates are plainly laws of broad applicability and apply respectively to healthcare workers, school employees, and state executive employees across Oregon."). Because PeaceHealth's vaccination requirement does not implicate procedural due process concerns, this claim should be dismissed.

e. "Spending Clause Doctrine" Is Nonexistent and Plaintiffs' Cited Laws Only Restrain the Federal Government.

Plaintiffs' final Section 1983 claim is their most difficult to parse. This claim is styled as "Deprivation of Rights Under Color of Law," but refers to the "Spending Clause Doctrine" and an undefined "Spending Agreement." Am. Compl. at 61; *id*. ¶ 221. The PeaceHealth Defendants are unaware of any "Spending Agreement," "Spending Clause Doctrine," or anything else Plaintiffs may intend by invoking this apparently nonexistent area of law. This is not a cognizable basis for a Section 1983 claim. The Court should dismiss the claim. *Pokras v. Lewis*, No. CV17-06603-JVS, 2018 WL 1901121, at *8 (C.D. Cal. Feb. 14, 2018) (dismissing claim with prejudice where it failed to "state a cognizable basis for relief under Section 1983"), *report and recommendation adopted*, 2018 WL 1896530 (C.D. Cal. Apr. 19, 2018).

To the extent that Plaintiffs are attempting to state a Section 1983 claim based on funding restrictions imposed on the ***federal government***,[7] such claims obviously fail. None of the sources of law Plaintiffs cite apply to any PeaceHealth Defendant,[8] Plaintiffs fail to allege any

[7] *See* Am. Compl. ¶¶ 216-18 (noting limitations on "funds administered by a federal department or agency" and "the Department of Defense," and asserting that the "federal government funds all COVID-19 EUA shots via Medicare").

[8] Save the "Provider Agreement," which refers to the CDC COVID-19 Vaccination Program Provider Agreement, which is a form contract between the Centers for Disease Control and Prevention ("CDC") and medical providers who would be administering COVID-19 vaccines. This applies to PeaceHealth only in PeaceHealth's capacity as an administrator of COVID-19 vaccines, but ***not*** in the context of PeaceHealth as an employer requiring its employees to receive COVID-19 vaccination (from any administrator of vaccines).

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600 University Street, Suite 3600, Seattle, WA 98101
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misappropriation of federal funds, and PeaceHealth would be an improper defendant for a charge that a federal agency misappropriated federal funds.

Finally, Plaintiffs assert that the Provider Agreement, 21 U.S.C. § 360bbb-3, 45 C.F.R. § 46.122, and 10 U.S.C. § 980 "clearly and unambiguously create rights enforceable to [*sic*] 42 U.S.C. § 1983 when federal funds are expended under those provisions of law."[9] Am. Compl. ¶ 232. All of Plaintiffs' allegations focus on federal funding PeaceHealth received in relation to ***vaccine administration*****,** not implementing its vaccine policy for employees. *Id.* ¶¶ 216-20, 222-32. None of Plaintiffs' "spending" allegations are relevant to its vaccine policy. The Court should dismiss Count Five.

B. Plaintiffs' Breach of Contract Claim Fails.

Plaintiffs' breach of contract claim against PeaceHealth also fails. Plaintiffs do not, and cannot, base this claim on an employment contract with PeaceHealth. Instead, they argue that they are third-party beneficiaries of the Provider Agreement,[10] as well as "45 CFR 46, 21 U.S.C. §360bbb-3, Title 21 of the US Code, [and] the EUA Scope of Authorization letter," which are not contracts. Am. Compl. ¶ 235. It is axiomatic that a breach of contract claim requires "the existence of a valid contract," *Bailey-Medwell v. Hartford Life & Accident Ins. Co.*, No. C17-1697-MJP, 2018 WL 5264335, at *3 (W.D. Wash. Oct. 23, 2018). Plaintiffs' "breach of contract" claim as based on statutes and government letter should be dismissed on that ground.

Regarding the Provider Agreement, Plaintiffs' claim fails for two reasons. First, they are not third-party beneficiaries of this agreement. Second, even if they were, the only "right" that could have been bestowed on them does not exist.

[9] The Fourteenth Amendment is inapplicable to any "spending claim," and fails for the reasons discussed in Sections IV.A.1 and IV.A.2. *See* Am. Compl. ¶ 215.

[10] Plaintiffs attached an unsigned "Provider Agreement" to their Amended Complaint as Exhibit A. For purposes of this Motion, the PeaceHealth Defendants accept Plaintiffs' allegation that this is the "Provider Agreement." Because the Provider Agreement is a contract entered into by United States (as the CDC), "[f]ederal law controls . . . ." *Klamath Water Users Protective Ass'n v. Patterson*, 204 F.3d 1206, 1210 (9th Cir. 1999).

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Telephone 206.624.0900

1. Plaintiffs Are Not Third-Party Beneficiaries of the Provider Agreement.

A party does not have standing to enforce a contract unless they are party to or an "intended third-party beneficiary of that agreement." *Deutsche Bank Nat'l Tr. Co. v. Slotke*, 192 Wn. App. 166, 177, 367 P.3d 600 (2016). To establish oneself as a third-party beneficiary, "the third party must show that the contract reflects the express or implied intention of the parties to the contract to benefit the third party." *Klamath Water Users Protective Ass'n v. Patterson*, 204 F.3d 1206, 1211 (9th Cir. 1999). When it is a government contract at issue, the standard is even more demanding: "[p]arties that benefit from a government contract are generally assumed to be incidental beneficiaries, and may not enforce the contract absent a clear intent to the contrary." *Id.*; *see also* Restatement (Second) of Contracts § 313 cmt. a, Westlaw (database updated Oct. 2023) ("Government contracts often benefit the public, but individual members of the public are treated as incidental beneficiaries unless a different intention is manifested."). Here, the Provider Agreement lacks any "clear intent" to grant Plaintiffs enforceable rights as third-party beneficiaries. *See* Am. Compl. Ex. A. It contains no mention of third-party beneficiaries, and Plaintiffs do not identify any provisions that they allege demonstrate an intent to grant them enforceable rights. *See id.* ¶ 235. Plaintiffs lack standing to assert breach of the Provider Agreement. Their claim must be dismissed.

2. The "Right" Plaintiffs Claim as Alleged Third-Party Beneficiaries Does Not Exist.

Even if Plaintiffs were third-party beneficiaries of the Provider Agreement, their breach of contract claim fails because the "right" they claim arises from the Provider Agreement does not exist. Plaintiffs insist that the "primary third-party beneficiary right intended for Plaintiffs is the freedom to consider participation in a federally funded EUA . . . PREP Act, or other emergency medical countermeasure products or activities that are free from 'sanctions,' 'coercion,' 'undue influence,' [or] 'unjustifiable pressures to participate.'" Am. Compl. ¶ 236. Despite the quotation

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marks, none of these words or phrases are found in the Provider Agreement.[11] This "right" does not exist in the Provider Agreement, and Plaintiffs' conflation of multiple documents cannot form the basis for a breach of contract claim. To the extent that Plaintiffs invoke the Belmont Report and/or 45 C.F.R. § 46.116 as the source of these purported rights, these are not contracts and no one could ever be a third-party beneficiary to them. Further, as explained above, PeaceHealth's vaccination policy is not "research" and Plaintiffs do not allege they received any COVID-19 vaccine (and thus these rights could never apply in this context). The claim should be dismissed.

C. Plaintiffs' "Washington State Common Law Employment Torts" Are Not Cognizable.

Plaintiffs' assertion of vague "Washington State Common Law Employment Torts" also fails. Am. Compl. ¶¶ 238-54. Plaintiffs do not allege they were anything but at-will employees and have not alleged that they requested (and were denied) a religious or medical exemption. Termination for failure to comply with a company vaccination policy does not give rise to any wrongful termination claim. *White v. Relay Res.*, No. C19-0284-JCC, 2019 WL 5677541, at *2 (W.D. Wash. Oct. 31, 2019) (noting "the presumption that a Washington employment contract is at-will"); *see also Antunes*, 627 F. Supp. 3d at 567 (dismissing wrongful termination claim of employee fired for violating employer's COVID-19 vaccination policy); *Fallon v. Mercy Catholic Med. Ctr. of Se. Pa.*, 200 F. Supp. 3d 553 (E.D. Pa. 2016) (granting employer's motion to dismiss former employee's wrongful termination claim where employee refused to receive influenza vaccine as required by employer). Plaintiffs' general "torts" cause of action should be dismissed.

D. Plaintiffs' Outrage Claim Fails Because Enforcing an Employee Vaccination Requirement Is Not "Extreme and Outrageous Conduct."

Plaintiffs' "outrage"[12] claim should also be dismissed. To establish outrage "a plaintiff must show (1) extreme and outrageous conduct, (2) intentional or reckless infliction of emotional

[11] These quotations are from 45 C.F.R. § 46.116 and the Belmont Report, which cannot form the basis for a breach of contract claim.

[12] Referred to as "outrage" here, this tort is "synonymous with a cause of action for intentional infliction of emotional distress." *Repin v. State*, 198 Wn. App. 243, 265, 392 P.3d 1174 (2017).

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distress, and (3) severe emotional distress on the part of the plaintiff." *Reid v. Pierce Cnty.*, 136 Wn.2d 195, 202, 961 P.2d 333 (1998). "Extreme and outrageous conduct" goes far beyond what any individual plaintiff might find despicable or unacceptable—it instead requires conduct "so outrageous in character, and so extreme in degree, to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." *Johnston v. M/V Dieu Si Bon*, No. C96-1050R, 1996 WL 866112, at *2 n.2 (W.D. Wash. Oct. 10, 1996) (quoting Restatement (Second) of Torts § 46(1) cmt. d)).

Plaintiffs do not make clear the "extreme and outrageous" conduct about which they complain, but it appears to be PeaceHealth's enforcement of its vaccination policy. *See* Am. Compl. ¶ 256 ("Defendants engaged in a scorched earth policy and inflicted with malicious intent severe emotional distress to the fullest extent that one in their positions of authority and power could inflict to the detriment of Plaintiffs' emotional well-being."). Courts in related cases hold that enforcement of a private vaccination requirement is neither extreme nor outrageous. *Cala v. Moorings Park Cmty. Health, Inc.*, No. 2:22-CV-635-JES-NPM, 2022 WL 17405581, at *5 (M.D. Fla. Dec. 2, 2022) ("Plaintiff alleges that she was deliberately terminated because she refused to take the COVID-19 vaccination based on her medical condition(s) and her sincerely held religious beliefs. While Defendant's conduct, if true, may be improper and discriminatory, it is not 'beyond all possible bounds of decency.'"), *reconsideration granted on other grounds*, 2023 WL 1102646 (M.D. Fla. Jan. 30, 2023); *Cesare v. PACT MSO, LLC*, No. 3:23-CV-253 (SVN), 2023 WL 5893429, at *5 (D. Conn. Sept. 11, 2023) ("Defendants' [vaccination] policies were in line with those adopted by countless other employers across the country during the COVID-19 pandemic and, therefore, plainly were not 'utterly intolerable in a civilized community.'" (citation omitted)); *see also Finkbeiner v. Geisinger Clinic*, 623 F. Supp. 3d 458, 469 (M.D. Pa. 2022) ("But even if she had met this requirement, it is not extreme and outrageous for a health system to present employees with the choice of a jab, a swab, or their job.").

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Telephone 206.624.0900

PeaceHealth's vaccination policy does not provide a basis for an outrage claim. Indeed, adopting a vaccination requirement for employees of a healthcare provider a global pandemic—as countless healthcare systems across the country and world have done—protects both employees and vulnerable patients. *Biden*, 595 U.S. at 93 ("After all, ensuring that providers take steps to avoid transmitting a dangerous virus to their patients is consistent with the fundamental principle of the medical profession: first, do no harm."). Plaintiffs' outrage claim should be dismissed.

E. Plaintiffs' "Invasion of Privacy and Defamation of Character" Claims Fail.

Plaintiffs simultaneously claim "Invasion of Privacy and Defamation of Character." Am. Compl. ¶¶ 259-69. Because these are distinct torts with distinct elements, they are addressed separately in turn.

1. Plaintiffs' Claim of "Invasion of Privacy" Fails Because a Healthcare Provider's COVID-19 Vaccination Status Is Not Offensive and of Legitimate Concern.

To state a claim for invasion of privacy, a plaintiff must show that (1) a defendant "publicized" a "matter concerning the private life of another," if (2) "the matter publicized is of a kind that (a) would be highly offensive to a reasonable person, and (b) is not of legitimate interest to the public." *Reid*, 136 Wn.2d 205 (quoting Restatement (Second) of Torts § 652D (1977)). Plaintiffs allege that "PeaceHealth established an identification system (badges) denoting employees' private health information (use of investigational drugs) and forced employees to wear or not[13] to wear the badge under threat of penalty," thus "openly disclos[ing] and publicly display[ing]" Plaintiffs' "private health information." Am. Compl. ¶¶ 261, 267. These allegations fail to state a privacy claim. Disclosing a healthcare provider's COVID-19 vaccination status to patients and others within hospital facilities (who may be unvaccinated or immunocompromised) in the midst of the COVID-19 pandemic is far from "highly offensive to a reasonable person." Aside from conclusory allegations that the PeaceHealth Defendants intended to "publicly

[13] The PeaceHealth Defendants understand that this ambiguous allegation refers to the idea that the absence of an employee badge would also impart information on that employee's COVID-19 vaccination status.

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Telephone 206.624.0900

humiliate" Plaintiffs, *id.* ¶ 268, Plaintiffs allege no facts suggesting that the mere disclosure of their vaccination status was "highly offensive." Courts addressing this exact question have dismissed identical claims on the pleadings even where plaintiffs alleged malice or offensiveness. *See Brown v. NW Permanente, P.C.*, No. 3:22-cv-986-SI, 2023 WL 6147178, at *8 (D. Or. Sept. 20, 2023) ("Plaintiffs' Complaint lacks any detail about the disclosure [of their vaccination status] other than that Plaintiffs heard hostile comments about unvaccinated people . . . . The Court thus grants NW Permanente's motion to dismiss on the invasion of privacy claim."); *Ojeda v. Kaiser Permanente Int'l, Inc.*, No. EDCV 22-1057-MWF, 2022 WL 18228249, at *7 (C.D. Cal. Nov. 29, 2022) ("[T]he Court concludes that Plaintiff has failed to allege sufficient facts to establish that the disclosure here was *highly offensive*. The Court does not know of any of the circumstances around the disclosure." (emphasis in original)).

Plaintiffs' invasion of privacy claim also fails because the COVID-19 vaccination status of employees of PeaceHealth is of "legitimate concern to the public" and thus could not serve as the basis for an invasion of privacy claim. *See Borrello v. Respironics Cal., LLC*, No. 23-CV-580-GPC-WVG, 2023 WL 5986135, at *8-10 (S.D. Cal. Sept. 14, 2023) (dismissing California invasion of privacy claim premised on employer vaccine requirement). Plaintiffs' invasion of privacy claim should be dismissed.

2. Plaintiffs' Defamation Claim Fails Because Plaintiffs Fail to Allege That PeaceHealth Made Any False Statement.

To prevail on a claim of defamation, Plaintiffs need to show (a) "a false and defamatory statement concerning another"; (b) "an unprivileged communication to a third party"; (c) "fault amounting at least to negligence on the publisher's part"; and (d) "either actionability of the statement or special harm caused by the publication." *Emeson v. Dep't of Corr.*, 194 Wn. App. 617, 639-40, 376 P.3d 430 (2016) (citation omitted). Plaintiffs must plead a *false* statement.[14]

[14] While Plaintiffs do not plead a "false light" claim—which is a separate tort—they do invoke the phrase "false light" three times. Am. Compl. ¶¶ 262, 264, 268. To the extent the Court believes Plaintiffs pleaded such a claim, it fails for the same reason the defamation claim fails. *Emeson*,

"Without a false or defamatory statement, claims for [defamation] . . . fail." *Id.* at 640. That is the case here.

Plaintiffs do not allege any false statements that the PeaceHealth Defendants made about them. They instead complain that PeaceHealth disclosed their vaccination status through their badge program, Am. Compl. ¶¶ 261, 263, "implied" that persons wearing a badge were unable to transmit COVID-19 to other persons, *id.* ¶ 265, and "defamed" the character of Plaintiffs by informing the Washington State Employment Security Department that Plaintiffs "engaged in misconduct and, therefore, should be denied unemployment benefits," *id.* ¶ 266. All of these allegations boil down to the fact that PeaceHealth *truthfully* communicated that Plaintiffs declined the COVID-19 vaccine—a fact that Plaintiffs do not dispute. Attaching conclusory pejoratives like "defamed" and "fraudulently" does not turn true statements of fact into defamation. Lacking any false statements, Plaintiffs' defamation claim must be dismissed.

F. Plaintiffs' "Implied Right of Action" Claim Should Be Dismissed Because There Is No Implied Right of Action Under 21 U.S.C. § 360bbb-3.

Plaintiffs' final claim is a purported "implied right of action" under 21 U.S.C. § 360bbb-3. Am. Compl. at 270-72. But because "there is no private right of action under that statute" the claim should be dismissed. *Tyson Foods, Inc.*, 607 F. Supp. 3d at 806; *see also Navy Seal 1*, 574 F. Supp. 3d at 1130 (holding that the "informed consent" provisions of 21 U.S.C. § 360bbb-3(e)(1)(A) "confer[] no private right of action").

G. Plaintiffs' Claims Should Be Dismissed with Prejudice Because Amendment Would Be Futile.

The PeaceHealth Defendants ask that the Court dismiss Plaintiffs' Amended Complaint with prejudice. "Leave to amend need not be granted 'where amendment would be futile or where the amended complaint would be subject to dismissal.'" *Demos*, 2022 WL 16927720, at *2 (quoting *Saul*, 928 F.2d at 843). Amendment would be futile here.

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194 Wn. App. at 640 ("Without a false or defamatory statement, claims for . . . false light invasion of privacy fail.").

Plaintiffs already had the chance to amend their complaint after the Court ordered them to file an amended complaint that "explain[s] what happened to them and identif[ies] which claims entitle them to relief." Dkt. No. 7 at 2. Plaintiffs' Amended Complaint, however, remains fundamentally flawed. When stripped of its bluster, the Amended Complaint alleges that the PeaceHealth Defendants should be held liable for implementing and enforcing an employee vaccine requirement. Courts have consistently held that plaintiffs have no case in these circumstances. Giving Plaintiffs a third bite at the apple is pointless. *Algarin v. NYC Health + Hosps. Corp*., No. 1:22-cv-8340 (JLR), 2023 WL 4157164, at *14 (S.D.N.Y. June 23, 2023) (dismissing with prejudice employee's claims, including Section 1983 claim, stemming from termination for refusal to comply with employer's COVID-19 vaccination policy in part because there was "further no indication as to how Plaintiff might cure the pleading deficiencies given the lack of facts, and legal support, to maintain the claims here"); *Demos*, 2022 WL 16927720, at *2 ("In this situation, it appears that amendment would be futile. . . . This is a nonsensical pleading that would meet the definition of frivolous—no arguable basis in law or fact—and would be subject to dismissal even if the Court granted leave to amend."). The Court should therefore dismiss with prejudice the Amended Complaint in its entirety.

V. CONCLUSION

Plaintiffs' Amended Complaint should be dismissed with prejudice and without leave to further amend.

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STOEL RIVES LLP
ATTORNEYS
600 University Street, Suite 3600, Seattle, WA 98101
Telephone 206.624.0900

I certify that this memorandum contains 10,115 words, in compliance with the Local Civil Rules and this Court's November 27, 2023 Order Granting Stipulated Motion re Filing of Overlength Briefs, Dkt. 28.

DATED: November 30, 2023

STOEL RIVES LLP

/s/ Jenna Poligo

Vanessa Soriano Power, WSBA No. 30777
vanessa.power@stoel.com
Jenna M. Poligo, WSBA No. 54466
jenna.poligo@stoel.com
Michael P. Rubin, WSBA No. 59598
michael.rubin@stoel.com
600 University Street, Suite 3600
Seattle, WA 98101
Telephone: 206.624.0900
Facsimile: 206.386.7500

Attorneys for Defendants PeaceHealth, Liz Dunne, and Doug Koekkoek

CERTICATE OF SERVICE

I hereby certify that on November 30, 2023, I electronically filed the foregoing with the Clerk of the Court using the CM/ECF system which will send notification of such filings to the following:

Meha Goyal
meha.goyal@pacificalawgroup.com,erica.knerr@pacificalawgroup.com

Charice L Holtsclaw
holtsclaw.law@gmail.com

Zachary J Pekelis
zach.pekelis@pacificalawgroup.com,erica.knerr@pacificalawgroup.com

Ian Rogers
ian.rogers@pacificalawgroup.com,sydney.henderson@pacificalawgroup.com

David J Schexnaydre
david@schexnaydre.com

Kai A Smith
kai.smith@pacificalawgroup.com,sydney.henderson@pacificalawgroup.com

Dated: November 30, 2023

STOEL RIVES LLP

/s/ Leslie Lomax
Leslie Lomax, Legal Practice Assistant

STOEL RIVES LLP
ATTORNEYS
600 University Street, Suite 3600, Seattle, WA 98101
Telephone 206.624.0900